

Jagdish Chandra Dixit And Ors. vs Rabindra Dixit And Ors. on 28 November, 1990

Equivalent citations: 1991CRILJ1697

ORDER

Palok Basu, J.

1. In this petition under Section 482, Cr.P.C. Jagdish Chandra Dixit, his wife Smt. Shanti and Narendra Deo, brother of Jagdish Chandra, have prayed for quashing of a complaint giving rise to Criminal case No. 540/1990 in the Court of 4th Additional Chief Judicial Magistrate, Etawah, in which the applicants were summoned by an order of the Magistrate dated 21-4-1990 to face trial under Section 494/ 120B/109, I.P.C.

2. The days of Ramayan are gone when at the mere asking of the father the son would voluntarily go to exile for 14 years in pursuance of the desires of the step mother. Now has ushered an era when a son is challenging the conduct of the father in contracting a second marriage. The complainant Ravindra Dixit has filed the complaint under the aforesaid sections alleging that his father Jagdish Chandra Dixit, and Chameli Devi his mother, were responsible for bringing him into mortal existence in July 1954. About four-five months after his birth, Jagdish Chandra Dixit contracted a second marriage with Smt. Shanti Devi in which applicant No. 3 Narendra deo had participated. These are the facts on the basis of which Section 494, I.P.C. is sought to be attracted and the son is desirous of prosecuting his father, stepmother and uncle.

3. The very basis of a prosecution under Section 494, I.P.C. is the prohibition of second marriage under the existing personal Law. If there is or was no such prohibition in the personal Law, the applicability of Section 494, I.P.C. would simply be ruled out. The Section would be attracted only when one having a husband or wife living marries the other during the lifetime of first husband or wife. Then only he or she must be punished with terms of imprisonment described therein.

4. It is interesting to remember that prior to the coming into force of "The Hindu Marriage Act" 1955 a Hindu male was not prohibited from contracting a second marriage even during the lifetime of the first wife. Section 17 of the Hindu Marriage Act, may be usefully quoted here :--

Section 17:

"Any marriage between two Hindus solemnised after commencement of this Act is void if at the date of such marriage either party had a husband or wife living and the provisions of Sections 494 and 495 of the I.P.C. shall apply accordingly."

5. The Hindu Marriage Act 1955 came into operation on 18th May 1955. Therefore, on the facts gathered from reading of the Complaint, it must be concluded definitely that the marriage of Jagdish Chandra Dixit with Smt. Shanti Devi had been performed in the year 1954. That being so, the complainant son is not justified to think that Section 494, I.P.C. was attracted to the solemnising of his father's marriage with his step-mother.

6. One fails to comprehend the wisdom behind the action of the son in attempting to prosecute his father for alleged bigamy admittedly committed about thirty five years ago. The suspicion is irresistible that the complaint is purposive and has been filed with ulterior motives. The anxiety to get some other scores settled, may be some property dispute, appears to be the purpose of filing this complaint rather than the desire to get the accused punished. Using the machinery of Criminal law after thirty five years of the alleged offence is itself enough to indicate abuse of the process of the Court.

7. In view of the aforesaid reasons this application is allowed. The complaint and further proceedings in Case No. 504/1990 pending before the 4th Additional Chief Judicial Magistrate, Etawah are quashed in exercise of the inherent powers of this Court.